

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
JEREMIAH ARROYO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER NEIL CASEY, SERGEANT RICARDO OTERO, POLICE OFFICER ANTHONY GONZALEZ, and POLICE OFFICERS JOHN DOES #1-10 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 19, 2015

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer Neil Casey
Sergeant Ricardo Otero
Police Officer Anthony Gonzalez

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

JEREMIAH ARROYO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER NEIL
CASEY, SERGEANT RICARDO OTERO, POLICE
OFFICER ANTHONY GONZALEZ, and POLICE
OFFICERS JOHN DOES #1-10 (names and number of
whom are unknown at present), and other unidentified
members of the New York City Police Department,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff JEREMIAH ARROYO, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. The claims in this action only cover causes of action related to the June 19, 2012 arrest of plaintiff and his subsequent prosecution. On June 19, 2012, approximately 4:30 p.m., plaintiff Jeremiah Arroyo, while lawfully walking in the vicinity of Hall Street and Rockaway Avenue, Brooklyn, New York, was subjected to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Thereafter, plaintiff was maliciously prosecuted by the defendant police officers. Further, the defendant police officers abused process and denied plaintiff the right to a fair trial. Additionally, while in Department of Corrections custody plaintiff was not produced for a court appearance in another case, causing the judge in that case to remand plaintiff back into DOC custody for several weeks when plaintiff finally appeared in the other cases, after hen was released from custody in the instant case. Additionally, after plaintiff was unlawfully stopped, plaintiff was assaulted, battered, and subjected to excessive force by the defendant police officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, arrested, maliciously prosecuted, abused process, denied plaintiff the right to a fair trial, and used excessive force against plaintiff in violation of the

Fourth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Jeremiah Arroyo is a resident of the state of New York.

3. Police Officer Neil Casey, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Police Officer Neil Casey is being sued in his individual and official capacity.

5. Sergeant Ricardo Ortero, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

6. Segeant Ricardo Ortero is being sued in his individual and official capacity.

7. Police Officer Anthony Gonzalez is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. Police Officer Anthony Gonzalez is being sued in his individual and official capacity.

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers John Does #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On June 6, 2012, at approximately 6:00 a.m., defendants executed a search warrant at 158 Hull Street, Brooklyn New York and falsely arrested plaintiff Jeremiah Arroyo after the search warrant was executed. Plaintiff Jeremiah Arroyo was released from custody from Kings County Central Booking several hours later after the Kings County District Attorneys Office found that the officers lacked probable cause to arrest plaintiff.

16. Approximately thirteen days after plaintiff was falsely arrested and then released when the DA declined to prosecute, on June 19, 2012 at approximately 4:30 p.m. the same police officers, defendants falsely arrested plaintiff in the vicinity of Hull Street and Rockaway Avenue for committing the identical crimes he was arrested for on June 6, 2012.

17. Upon information and belief, for the purpose of justifying plaintiff's June 6, 2012 arrest, on June 19, 2012, at approximately 4:30 p.m., the defendant police officers arrested plaintiff again for the crimes he allegedly committed on June 6, 2012 while plaintiff was lawfully standing in the vicinity of Hull Street and Rockaway Avenue, Brooklyn, New York.

18. The officers did not possess any additional facts when they arrested plaintiff on June 19, 2012 that they had not already possessed when they had initially arrested plaintiff on June 6, 2012.

19. At no time did plaintiff commit a crime, nor did the defendant police officers have any reason to believe he committed a crime on June 19, 2012 or June 6, 2012.

20. The officers knew they lacked probable cause to re-arrest plaintiff on June 19, 2012.

21. At no time on June 19, 2012 did the defendant police officers recover any drugs, weapons, or contraband of any kind from plaintiff.

22. Nevertheless, the defendant handcuffed plaintiff and falsely arrested him without legal justification or probable cause.

23. Thereafter, on June 19, 2012, the defendants transported plaintiff to the 73rd precinct.

24. The defendant police officers spoke to the Special Narcotics Prosecutor instead of the Kings County District Attorneys Office, neglected to tell the Office of the Special Narcotics Prosecutor that the Kings County District Attorneys Office declined to prosecute plaintiff for the crime he was accused of committing and falsely told the Kings County District Attorney's Office that plaintiff committed a crime on June 6, 2012.

25. The defendant police officers purposely and maliciously misled the Office of the Special Narcotics Prosecutor on June 19, 2012 so that the District Attorney's Office would prosecute plaintiff for crimes he allegedly committed on June 6 2012.

26. Importantly, the collateral objective the defendants had for ensuring plaintiff was prosecuted was to justify the arrest of plaintiff on June 6, 2012.

27. Based upon the false, misleading, and incomplete information provided to the Office of the Special Narcotics Prosecutor by the defendant police officers and sworn to by the defendants in the criminal court complaint, defendants initiated a prosecution against plaintiff on June 19, 2012, and legal process against plaintiff was commenced when plaintiff was arraigned in New York County Supreme Court on June 20, 2012 and was falsely charged with several crimes.

28. On June 19, 2012, after approximately 24 hours in police custody, plaintiff was arraigned in New York County Supreme Court, falsely charged with several crimes the defendant officers lacked probable cause to allege he committed, and remanded into New York City Department of Correction Custody.

29. Plaintiff was unlawfully detained in New York City Department of Correction custody until July 2, 2012.

30. During that time period the Department of Correction neglected to produce plaintiff for a court appearance in a case he had in Brooklyn.

31. After plaintiff was released from DOC custody he appeared in the case he was not produced for in Kings County and the Judge remanded him to DPC custody for several weeks simply because DOC didn't produce him when he was in their custody.

32. Plaintiff was forced to appear in Court on numerous occasions before all charges against plaintiff terminated in his favor and were dismissed on January 31, 2013.

33. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, abuse of process, denial of fair trial, and use of excessive force against plaintiff.

34. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers fabricate allegations against an individual, to justify why an arrest of the individual was previously made.

35. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, abuse of process, denial of a fair trial, and the use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

38. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

39. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

40. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

41. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Failure to Intervene

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

44. Defendants failed to intervene to prevent the unlawful conduct described herein.

45. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Unlawful Stop

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The conduct of defendants in stopping, frisking, searching, assaulting and battering plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

50. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

54. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SIXTH CAUSE OF ACTION

Negligence

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. Defendants owed a duty of care to plaintiff.

57. Defendants breached that duty of care by unlawfully stopping, questioning, frisking, falsely arresting, illegally searching, maliciously prosecuting, assaulting and battering plaintiff.

58. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

59. All of the foregoing occurred without any fault or provocation by plaintiff.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Bernard Miller. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

63. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. The use of excessive force by defendants by throwing plaintiff to the ground and repeatedly punching plaintiff in the face was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

67. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

NINTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

70. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally stopping, questioning, searching, and arresting individuals without a specific, articulable factual basis supporting reasonable suspicion and/or probable cause that plaintiff committed a crime and fabricating allegations against an individual to justify the amount of force used during an arrest, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to these issues.

71. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

72. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

73. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

74. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

75. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

TENTH CAUSE OF ACTION

Malicious Prosecution

76. Plaintiff repeats and realleges paragraphs 1 through 75 as if fully set forth herein.

77. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

78. Defendants commenced and continued a criminal proceeding against plaintiff.

79. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

80. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

81. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

ELEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial

84. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 83 with the same force and effect as if fully set forth herein.

85. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Office of the Special Narcotics Prosecutor.

86. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Office of the Special Narcotics Prosecutor.

87. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Office of the Special Narcotics Prosecutor.

88. In withholding/creating false evidence against plaintiff Bernard Miller, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

89. As a result of the foregoing, plaintiff Jeremiah Arroyo, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

90. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

91. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TWELVTH CAUSE OF ACTION

Malicious Abuse of Process

92. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 91 with the same force and effect as if fully set forth herein.

93. Defendants issued legal process to place plaintiff Jeremiah Arroyo under arrest.

94. Defendants arrested plaintiff Jeremiah Arroyo in order to obtain a collateral objective outside the legitimate ends of the legal process.

95. Defendants acted with intent to do harm to plaintiff Jeremiah Arroyo, without excuse or justification.

96. As a result of the foregoing, plaintiff Jeremiah Arroyo sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

97. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

98. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

99. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Jeremiah Arroyo demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 19, 2015

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 19, 2015

/s/
STUART E. JACOBS